EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 13325/10
Orhan MİROĞLU
against Turkey

The European Court of Human Rights (Second Section), sitting on 11 February 2020 as a Committee composed of:

Egidijus Kūris, *President,*
Ivana Jelić,
Darian Pavli, *judges,*

and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above application lodged on 1 March 2010,

Having regard to the formal declarations accepting a friendly settlement of the case,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicant, Mr Orhan Miroğlu, is a Turkish national, who was born in 1952 and lives in Ankara. He was represented before the Court by Mr C. Kayhan, a lawyer practising in Ankara.

2. The Turkish Government ("the Government") were represented by their Agent.

3. The applicant complained under Articles 9, 10, 11 and 14 of the Convention about the ancillary measure imposed by the Constitutional Court which banned him from undertaking any active duties in a political party.

4. On 5 December 2019 and 12 November 2019 the Court received friendly settlement declarations signed by the parties under which the applicant agreed to waive any further claims against Turkey in respect of the facts giving rise to this application against an undertaking by the Government to pay him 3,500 (three thousand and five hundred) euros to cover any pecuniary and non-pecuniary damage as well as costs and expenses, which will be converted into Turkish Liras at the rate applicable

on the date of payment, and will be free of any taxes that may be applicable and payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the case.

THE LAW

5. The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the application. In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 19 March 2020.

Hasan Bakırcı Deputy Registrar	Egidijus Kūris President